



File No.: EXP202211572

RESOLUTION OF RECOURSE FOR RECONSIDERATION

Examined the recourse for reconsideration filed by A.A.A. (hereinafter, the appellant) against the resolution issued by the Director of the Spanish Agency for Data Protection dated June 29, 2023, and based on the following

FACTS

FIRST: On June 29, 2023, a resolution was issued by the Director of the Spanish Agency for Data Protection in file EXP202211572, by virtue of which A.A.A. was imposed:

- For a violation of Article 5.1.c) of the GDPR, classified under Article 85 of the GDPR, a fine of 300 euros (THREE HUNDRED EUROS).
- For a violation of Article 13 of the GDPR, classified under Article 83.5 of the GDPR, a fine of 300 euros (THREE HUNDRED EUROS).

This resolution, which was notified to the appellant on July 13, 2023, was issued following the processing of the corresponding sanctioning procedure, in accordance with the provisions of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (LOPDGDD), and subsidiarily under Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), regarding the processing of sanctioning procedures.

SECOND: As proven facts of the aforementioned sanctioning procedure, PS/00061/2023, the following was recorded:

FIRST: It is recorded, according to documentation in the file, that the respondent has installed two cameras on the facade of a property owned by said respondent, which, due to their orientation, are likely to be recording the public road and, consequently, any person passing by.

SECOND: It is recorded, according to documentation in the file, that despite there being a sign informing that the area is under video surveillance, it does not meet the requirements set forth in Article 22 of the LOPDGDD, since it does not indicate who is responsible for the processing, nor does it indicate the possibility of exercising the rights provided for in Articles 15 to 22 of Regulation (EU) 2016/679.

C/ Jorge Juan, 6

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THIRD: The appellant submitted on July 20, 2023, to this Spanish Agency for Data Protection, a recourse for reconsideration, basing it fundamentally on:

“The surveillance cameras referred to were installed after I suffered a burglary at my home, at the same time that I contracted with the company Securitas Direct for the installation, maintenance, and connection to the central receiver of an alarm system. The same is marked with the corresponding identification plate of the installing company.

To this end, I attach copies of the invoices for the service they provide me, photos of the facade where the cameras are located, photos of the facade with the plate indicating it, a copy of the complaint I filed after suffering the burglary at my home, and finally a photo of the brand of the installed cameras.

As you can see, the cameras only point towards the access points to my own home with no intention of seeking any other function than preserving the security of my property.

Therefore, I request that the allegations provided serve as the basis for the recourse and that the sanctioning resolution be annulled.”

LEGAL GROUNDS

I

Competence

The Director of the Spanish Agency for Data Protection is competent to resolve this recourse in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP) and Article 48.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter, LOPDGDD).

II

Response to the allegations presented

In relation to the statements made by the appellant, it should be noted, first of all, that Article 118.1 of the LPACAP states:

“(…) Facts, documents, or allegations of the appellant will not be taken into account in the resolution of the recourses when, having been able to provide them during the allegation phase, they have not done so. The practice of evidence may also not be requested when its lack of execution in the procedure in which the contested resolution was issued is attributable to the interested party.”

However, and given that in this case the notification of the Agreement to Initiate the Sanctioning Procedure was made through publication in the Single Edict Board, as the interested party did not collect the postal notification, the allegations and documentation presented with this Recourse for Reconsideration are analyzed:

-The claimant alleges that the surveillance cameras were installed after suffering a burglary at their home, at the same time that they contracted with the company Securitas Direct for the...

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3/4

installation, maintenance, and connection to the receiver central of an alarm system.

It is marked with the corresponding identification plate of the installing company.

In this regard, this Agency points out that, upon reviewing the submitted images, the informational sign indicating that the area is under video surveillance does not meet all the requirements established by Article 22 of the LOPDGDD, as the information provided is incomplete and insufficient, since it does not specify who is responsible for the data processing, nor does it indicate the possibility of exercising the rights provided for in Articles 15 to 22 of Regulation (EU) 2016/679.

-The appellant claims that the cameras only point towards the access points to their own home with no intention of serving any other function than to preserve the security of their property.

In this regard, this Agency notes that the appellant has not provided, in the documentation accompanying their appeal for reconsideration, any image that indicates what the actual field of view of the cameras is, therefore the sanctioning resolution remains unchallenged.

III

Conclusion

Consequently, in the present appeal for reconsideration, the appellant has not provided new facts or legal arguments that would allow for a reconsideration of the validity of the contested resolution.

Considering the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the appeal for reconsideration filed by A.A.A. against the resolution of this Spanish Agency for Data Protection issued on June 29, 2023, in file EXP202211572.

SECOND: TO NOTIFY this resolution to A.A.A.

THIRD: To warn the sanctioned party that the imposed sanction must be fulfilled once this resolution becomes executive, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, within the voluntary payment period indicated in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by depositing it in the restricted account No. ES00 0000 0000 0000 0000 0000, opened in the name of the Spanish Agency for Data Protection at CAIXABANK, S.A., or otherwise, collection will proceed during the executive

period.

Upon receipt of the notification and once it is executive, if the date of executiveness falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned LPACAP. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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